

IP01

Making of the Constitution, Preamble, Salient Features, Sources

About 2-3 questions a paper out of Indian Polity's 10-11. The Constituent Assembly committees-and-chairpersons matching has come in 2018, 2021, 2023 and 2024 - four papers in a row. The 42nd Amendment's three Preamble words came in 2021. Learn the tables cold.

How the Constitution was made, who made it, and where each idea came from. RPSC does not ask you to discuss this chapter - it asks you to match a committee to its chairman, a country to a borrowed feature, a Schedule to its subject and a date to an event. It is a memory chapter, and it is fully bankable.

Making of the Constitution

Assembly - the basics

- Idea: M. N. Roy, 1934
- Set up under Cabinet Mission Plan, Nov 1946
- Strength 389, then 299 after Partition
- Indirect election by provincial assemblies, PR with single transferable vote

The people

- Sachchidananda Sinha - temporary President
- Rajendra Prasad - permanent President, 11 Dec 1946
- B. N. Rau - Constitutional Adviser
- Ambedkar - Chairman, Drafting Committee
- Prem Behari Narain Raizada - calligrapher

Dates that get asked

- 9 Dec 1946 first sitting
- 13 Dec 1946 Objectives Resolution moved
- 22 Jan 1947 adopted
- 29 Aug 1947 Drafting Committee
- 26 Nov 1949 adopted
- 24 Jan 1950 last session
- 26 Jan 1950 commencement

Preamble

- Sovereign Socialist Secular Democratic Republic
- Justice, Liberty, Equality, Fraternity
- 42nd Amendment 1976 - Socialist, Secular, Integrity
- Berubari 1960 vs Kesavananda 1973

Sources

- Britain - parliamentary system, writs
- USA - FRs, judicial review
- Ireland - DPSPs
- Canada - strong Centre, residuary powers
- Govt Act 1935 - the bulk of the structure

Shape of the document

- Originally 395 Articles, 22 Parts, 8 Schedules
- Now about 448 Articles, 25 Parts, 12 Schedules
- Art. 1 - Union of States
- Arts. 1-4 - territory and reorganisation

Where the Assembly came from - the idea and the arithmetic

A Constituent Assembly means a body of Indians sitting down to write their own Constitution, not a document handed over by London. That demand has a clear paternity. M. N. Roy, a pioneer of the communist movement in India, first put the idea forward in 1934. The Congress made it an official demand in 1935. The British conceded it in principle in the August Offer of 1940. It was finally given shape by the Cabinet Mission Plan of 1946.

The Assembly was constituted in November 1946. Note carefully how the members got there. They were not directly elected by the people. Provincial legislative assemblies elected them, by proportional representation with a single transferable vote. So it was an indirectly elected body - that is the standard criticism, and it is also a standard question.

- Total strength as planned: 389.
- 296 from British India = 292 from the provinces + 4 from the chief commissioners' provinces, one of which was Ajmer-Merwara.
- 93 seats for the princely states.
- Roughly one seat for every million of population.
- Provincial seats were divided among Muslim, Sikh and General communities.
- After Partition the strength came down to 299.

TRAP

Do not say the Constituent Assembly was set up under the Government of India Act, 1935. It was set up under the Cabinet Mission Plan, 1946. The 1935 Act is a source of the Constitution's content, not the authority for the Assembly.

Who ran the Assembly - office-bearers you must be able to name

The first sitting was on 9 December 1946. Dr. Sachchidananda Sinha, the oldest member, presided as temporary or provisional President. Two days later, on 11 December 1946, Dr. Rajendra Prasad was elected the permanent President. Remember both names and both roles - RPSC swaps them.

Behind the Assembly sat a small professional staff. B. N. Rau, the Constitutional Adviser, prepared the initial draft in October 1947 on which the

Drafting Committee then worked. That is the man to name when a question says 'Constitutional Adviser'.

Person to role – learn this as a list of pairs

Person	Role in the Constituent Assembly
Dr. Sachchidananda Sinha	Temporary (provisional) President, first sitting 9 Dec 1946
Dr. Rajendra Prasad	Permanent President, elected 11 Dec 1946
H. C. Mukherjee and V. T. Krishnamachari	Vice-Presidents of the Assembly
Dr. B. R. Ambedkar	Chairman, Drafting Committee
B. N. Rau	Constitutional Adviser; prepared the initial draft, Oct 1947
H. V. R. Iyengar	Secretary to the Assembly
S. N. Mukherjee	Chief Draftsman
Prem Behari Narain Raizada	Handwrote the manuscript in flowing italic calligraphy
Nandalal Bose, Beohar Rammanohar Sinha	Decorated and illuminated the manuscript (Shantiniketan)

- V. T. Krishnamachari represented Jaipur in the Assembly – a Rajasthan link worth remembering.
- He later became Deputy Chairman of the Planning Commission.
- The Objectives Resolution was moved by Jawaharlal Nehru on 13 December 1946.
- It was adopted on 22 January 1947 and became the basis of the Preamble.
- Ambedkar was never President or Chairman of the Assembly – he chaired only the Drafting Committee, so an option reading 'Ambedkar was elected permanent Chairman of the Constituent Assembly' is wrong.

The committees and their chairpersons - the most repeated table in this chapter

The Assembly worked through committees. RPSC has turned this into a matching question again and again - 2018, 2021, 2023 and 2024. Do not try to learn twenty-two committee names. Learn them in blocks by chairman. Nehru took the Union-side committees, Patel took the provincial and rights side, Rajendra Prasad took the housekeeping committees, Ambedkar took drafting.

Major committees to chairpersons

Committee	Chairperson
Union Powers Committee	Jawaharlal Nehru
Union Constitution Committee	Jawaharlal Nehru
States Committee (negotiating with the States)	Jawaharlal Nehru
Provincial Constitution Committee	Sardar Vallabhbhai Patel
Advisory Committee on Fundamental Rights, Minorities and Tribal and Excluded Areas	Sardar Vallabhbhai Patel
Steering Committee	Dr. Rajendra Prasad
Rules of Procedure Committee	Dr. Rajendra Prasad
Finance and Staff Committee	Dr. Rajendra Prasad
Ad hoc Committee on the National Flag	Dr. Rajendra Prasad
Drafting Committee	Dr. B. R. Ambedkar

Minor committees and the sub-committees under Patel's Advisory Committee

Committee / Sub-committee	Chairperson
Credentials Committee	Alladi Krishnaswami Ayyar

<i>Committee / Sub-committee</i>	<i>Chairperson</i>
<i>House Committee</i>	<i>B. Pattabhi Sitaramayya</i>
<i>Committee on Chief Commissioners' Provinces</i>	<i>B. Pattabhi Sitaramayya</i>
<i>Order of Business Committee</i>	<i>K. M. Munshi</i>
<i>Committee on the Functions of the Constituent Assembly</i>	<i>G. V. Mavalankar</i>
<i>Press Gallery Committee</i>	<i>Usha Nath Sen</i>
<i>Sub-committee on Fundamental Rights</i>	<i>J. B. Kripalani</i>
<i>Sub-committee on Minorities</i>	<i>H. C. Mukherjee</i>
<i>Sub-committee on North-East Frontier Tribal Areas and Assam Excluded Areas</i>	<i>Gopinath Bardoloi</i>
<i>Sub-committee on Excluded and Partially Excluded Areas (other than Assam)</i>	<i>A. V. Thakkar</i>

ASKED IN RAS

Asked in RAS Pre 2021 and again in 2024 - match the committee to its chairman: Union Powers Committee - Nehru; Provincial Constitution Committee - Patel; Steering Committee - Rajendra Prasad; Drafting Committee - Ambedkar. The same four pairs, twice.

ASKED IN RAS

Asked in RAS Pre 2023 - the minor committees: Order of Business Committee - K. M. Munshi; Credentials Committee - Alladi Krishnaswami Ayyar; Committee on the Functions of the Constituent Assembly - G. V. Mavalankar; House Committee - B. Pattabhi Sitaramayya.

- Sitaramayya is the one man with two committees - House, and Chief Commissioners' Provinces.
- The Advisory Committee on Fundamental Rights was Patel's; its Fundamental Rights SUB-committee was Kripalani's. Parent body and sub-committee, two

different chairmen.

- Every sub-committee in the second table reported to Patel's Advisory Committee.

The Drafting Committee - seven names

The Drafting Committee was set up on 29 August 1947, three weeks after Independence, with seven members under Ambedkar. It produced the Draft Constitution published in February 1948 and submitted to the President of the Assembly on 21 February 1948. Two members changed during its life - learn the replacements, because that is exactly what gets asked.

- Dr. B. R. Ambedkar - Chairman.
- N. Gopalaswami Ayyangar.
- Alladi Krishnaswami Ayyar.
- K. M. Munshi.
- Syed Mohammad Saadullah.
- N. Madhava Rau - replaced B. L. Mitter.
- T. T. Krishnamachari - replaced D. P. Khaitan, who died in 1948.

ASKED IN RAS

Asked in RAS Pre 2018, twice over. One question asked which statements about the Drafting Committee are correct - constituted 29 August 1947, Ambedkar as chairman, Alladi Krishnaswami Ayyar and K. M. Munshi as members: all three correct. Another asked who was NOT a member - the answer was Jawaharlal Nehru.

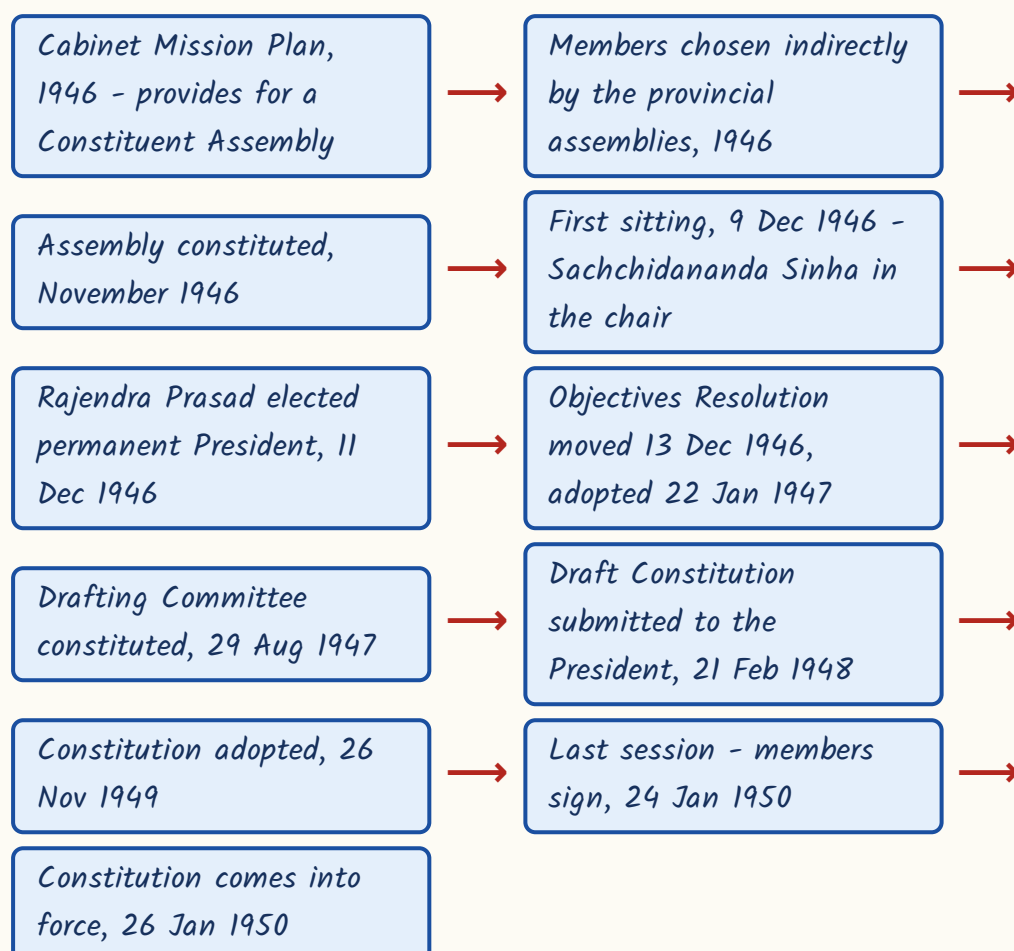
YAAD RAKHO

Yaad rakho the two substitutions as a pair: 'Mitter out, Madhava Rau in; Khaitan out, T. T. Krishnamachari in.' Nehru and Patel were never on the Drafting Committee.

From the Cabinet Mission to 26 January 1950 - the chronology

RAS asks chronological-ordering questions in about 3 per cent of the paper, and this chapter is a favourite hunting ground. Fix the sequence once, in order, and any ordering question becomes free marks.

The full timeline



- 11 sessions in all, spread over 165 days.
- 114 of those days went on considering the Draft Constitution.

- Total time taken: 2 years, 11 months and 18 days.
- At the last session on 24 January 1950 the members signed the Constitution and Dr. Rajendra Prasad was elected the first President of India.
- 26 January was chosen because Purna Swaraj Day had been observed on that date since 1930.

26 November 1949 vs 26 January 1950 - do not merge these two

26 November 1949	26 January 1950
Constitution ADOPTED by the Constituent Assembly	Constitution came into FORCE (commencement)
The date written into the Preamble itself	The date we celebrate as Republic Day
Observed as Constitution Day / Samvidhan Divas since 2015	Purna Swaraj Day since 1930 - that is why it was picked
Articles 5-9 on citizenship and a few other provisions took effect at once	The rest of the Constitution took effect

ASKED IN RAS

Asked in RAS Pre 2023 - the Constituent Assembly held its last session, at which the members signed the Constitution, on 24 January 1950. Not 26 November 1949, not 26 January 1950.

The Preamble - the words, and what the 42nd Amendment did to them

The Preamble is the introduction to the Constitution and it grew directly out of Nehru's Objectives Resolution. Two things get asked from it: the exact keywords, and the amendment history. Nothing else.

- Nature of the State: Sovereign, Socialist, Secular, Democratic, Republic.

- Justice - social, economic and political.
- Liberty - of thought, expression, belief, faith and worship.
- Equality - of status and of opportunity.
- Fraternity - assuring the dignity of the individual and the unity and integrity of the Nation.
- The Preamble records the date of adoption as 26 November 1949.

ASKED IN RAS

Asked in RAS Pre 2021 - the words 'Socialist', 'Secular' and 'Integrity' were inserted into the Preamble by the 42nd Amendment Act, 1976. That is the only amendment to the Preamble to date.

YAAD RAKHO

Yaad rakho - S-S-I for the 42nd Amendment: Socialist, Secular, Integrity. 'Socialist' and 'Secular' went into the description of the State; 'Integrity' went into the Fraternity clause, which now reads 'unity and integrity of the Nation'.

Is the Preamble part of the Constitution? The court's position moved

Berubari Union case, 1960
- the Preamble is NOT a part of the Constitution

Kesavananda Bharati, 1973
- the Preamble IS a part of the Constitution and is amendable, but not so as to damage the basic structure

LIC of India case, 1995 -
reaffirms that the Preamble is a part of the Constitution

TRAP

The Preamble is not enforceable in a court and it is not a source of power for the Government or of any limitation on it. It is used only as an aid to interpretation. Any option calling it 'a source of legislative power' is wrong.

CURRENT LINK

Current link, as of September 2026: on 25 November 2024 the Supreme Court in *Dr. Balram Singh v. Union of India* dismissed petitions seeking removal of 'Socialist' and 'Secular' from the Preamble, holding that Parliament's amending power under Article 368 extends to the Preamble and that these words have acquired settled Indian meanings. The political debate around the two words has continued since - expect a statement-based question.

Sources - which country gave us what

Almost nothing in the Constitution was invented from nothing. The framers studied about sixty constitutions and picked what worked. RPSC asks this as country-to-feature matching or as a 'which pair is NOT correctly matched' question. Learn it as a table, not as prose.

Source country to borrowed feature

Source	What we took from it
Government of India Act, 1935	Federal scheme, office of Governor, judiciary, public service commissions, emergency provisions - the single largest source
Britain	Parliamentary government, rule of law, single citizenship, prerogative writs, bicameralism, cabinet system
USA	Fundamental Rights, judicial review, independence of the judiciary, impeachment of the President, post of Vice-President

Source	What we took from it
Ireland	Directive Principles, nomination of members to the Rajya Sabha, method of election of the President
Canada	Federation with a strong Centre, residuary powers with the Union, appointment of Governors, advisory jurisdiction of the Supreme Court
Australia	Concurrent List, joint sitting of the two Houses, freedom of trade, commerce and intercourse
Weimar Germany	Suspension of Fundamental Rights during an emergency
Japan	The expression 'procedure established by law' in Article 21
USSR	Fundamental Duties, and the ideal of justice - social, economic and political - in the Preamble
France	Republic, and the ideals of liberty, equality and fraternity
South Africa	Procedure for amendment of the Constitution, and election of Rajya Sabha members

TRAP

Three pairs RPSC loves to plant wrong. Fundamental DUTIES came from the USSR, not the USA - the USA gave Fundamental RIGHTS. Directive Principles came from Ireland, not the USSR. 'Procedure established by law' is Japan; 'due process of law' is the American phrase we deliberately did not take.

- Ireland had itself borrowed the Directive Principles idea from Spain.
- Single citizenship is British; the USA has dual citizenship.
- Both amendment procedure and Rajya Sabha election come from South Africa - one card, two facts.

Salient features, Union of States, and the shape of the document

Now the physical description of the Constitution and its opening Articles. These give one-liner questions almost every year - counts of Articles, Parts and Schedules, and the wording of Article 1.

- As originally enacted: 395 Articles, 22 Parts, 8 Schedules.
- At present: about 448 Articles, 25 Parts and 12 Schedules.
- It is the lengthiest written constitution in the world.
- Other salient features: a blend of rigidity and flexibility, federal in form with a unitary bias, parliamentary government, integrated and independent judiciary, single citizenship, universal adult franchise, three-tier government after the 73rd and 74th Amendments.

Articles 1 to 4 - territory and reorganisation

- Art. 1 - 'India, that is Bharat, shall be a Union of States.' The phrase is Union of States, not Federation of States.
- Art. 2 - admission or establishment of NEW States (states not already part of India).
- Art. 3 - formation of new States and alteration of areas, boundaries or names of EXISTING States.
- Art. 4 - laws made under Articles 2 and 3 are not deemed to be amendments under Article 368, so a simple majority suffices.

The twelve Schedules and their subjects

Schedule	Subject
First	States and Union Territories
Second	Emoluments and allowances of officials such as the President, Governors, judges
Third	Forms of oaths and affirmations
Fourth	Allocation of Rajya Sabha seats to States and UTs
Fifth	Administration of Scheduled Areas and Scheduled Tribes
Sixth	Tribal areas of Assam, Meghalaya, Tripura and Mizoram

Schedule	Subject
Seventh	Union, State and Concurrent Lists
Eighth	Languages recognised by the Constitution - 22 at present
Ninth	Laws immune from challenge - added by the 1st Amendment, 1951
Tenth	Anti-defection provisions - 52nd Amendment, 1985
Eleventh	Panchayats, 29 subjects - 73rd Amendment
Twelfth	Municipalities, 18 subjects - 74th Amendment

- Seventh Schedule as originally enacted: Union List 97 subjects, State List 66, Concurrent List 47.
- Eighth Schedule: Sindhi was added by the 21st Amendment (1967).
- Bodo, Dogri, Maithili and Santhali were added by the 92nd Amendment (2003), taking the count to 22.
- Eleventh Schedule = panchayats, 29 subjects. Twelfth = municipalities, 18 subjects. RPSC plants 'Twelfth Schedule - anti-defection' as a wrong pair; anti-defection is the Tenth Schedule.

REVISION RECAP

1. Idea of a Constituent Assembly - M. N. Roy 1934; Congress demand 1935; conceded in the August Offer 1940; delivered by the Cabinet Mission Plan 1946.
2. Strength 389 (296 British India + 93 princely states), 299 after Partition; indirectly elected by provincial assemblies through PR with a single transferable vote.
3. 9 Dec 1946 first sitting under Sachchidananda Sinha; 11 Dec 1946 Rajendra Prasad becomes permanent President.
4. B. N. Rau Constitutional Adviser, H. V. R. Iyengar Secretary, S. N. Mukherjee Chief Draftsman.
5. Objectives Resolution - moved by Nehru 13 Dec 1946, adopted 22 Jan 1947; it became the Preamble.
6. Nehru chaired Union Powers, Union Constitution and States Committees; Patel the Provincial Constitution Committee and the Advisory Committee on FRs and Minorities.
7. Rajendra Prasad chaired Steering, Rules of Procedure, Finance and Staff, and the Ad hoc Committee on the National Flag.

8. Munshi - Order of Business; Alladi - Credentials; Mavalankar - Functions of the Assembly; Sitaramayya - House and Chief Commissioners' Provinces.
9. Kripalani headed the Fundamental Rights sub-committee, H. C. Mukherjee the Minorities sub-committee, Bardoloi the North-East tribal areas, Thakkar the other excluded areas.
10. Drafting Committee: 29 Aug 1947, seven members; Madhava Rau replaced B. L. Mitter and T. T. Krishnamachari replaced D. P. Khaitan.
11. 11 sessions, 165 days, 114 days on the draft; total 2 years 11 months 18 days.
12. Adopted 26 Nov 1949 (Constitution Day since 2015), signed 24 Jan 1950, in force 26 Jan 1950.
13. Manuscript handwritten by Prem Behari Narain Raizada, decorated by Nandalal Bose and Beohar Rammanohar Sinha.
14. Preamble words: Sovereign, Socialist, Secular, Democratic, Republic + Justice, Liberty, Equality, Fraternity.
15. 42nd Amendment 1976 is the only amendment to the Preamble - it added Socialist, Secular and Integrity.
16. Berubari 1960 - Preamble not part of the Constitution; Kesavananda 1973 - it is, and it is amendable within basic structure limits.
17. Ireland gave the DPSPs; USSR gave the Fundamental Duties; Japan gave 'procedure established by law'; Weimar Germany gave suspension of FRs in an emergency.
18. Gol Act 1935 is the largest single source - federal scheme, Governor, judiciary, PSCs, emergency provisions.
19. Originally 395 Articles, 22 Parts, 8 Schedules; now roughly 448 Articles, 25 Parts, 12 Schedules.
20. Art. 1 Union of States; Art. 2 new States admitted; Art. 3 existing States altered; Art. 4 no Art. 368 amendment needed.